



U.S. Department  
of Transportation

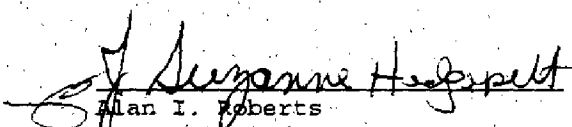
Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 9956 (EXTENSION)  
SECOND REVISION March 19, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9956 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Dolphin Commercial Chemical, Inc. d/b/a DCC, Inc.  
Dallas, TX

September 23, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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MAR 13 1990

DOT-E 9956  
(SECOND REVISION)

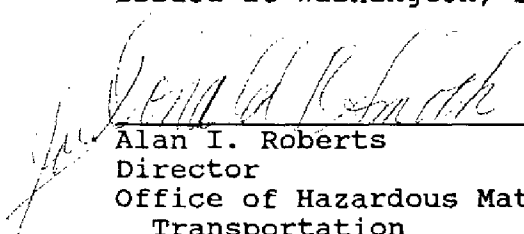
1. DPC Industries Co., Houston, Texas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of hypochlorite solution in an unlined cargo tank constructed of titanium, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Dixie Petro-Chem Incorporated's application dated February 3, 1989, submitted in accordance with 49 CFR 107.105, and the public proceeding thereon and supplemental correspondence dated January 19, 1990.
3. HAZARDOUS MATERIALS (Descriptor and class). Hypochlorite solution containing more than 7% available chlorine by weight, classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Hypochlorite solution containing more than 7% available chlorine by weight.
5. REGULATION AFFECTED. 49 CFR 173.277(a)(9), 178.340, 178.343.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is one unlined non-DOT Specification cargo tank having a nominal water capacity of 1200 gallons in conformance with the DOT MC-312 specification in all respects except for the following:
  - a. §178.340-3 - Does not apply. The cargo tank must be constructed of Grade 2 titanium.
  - b. §178.343-2 - Does not apply. Minimum thickness of shell is 0.125 inch. Minimum thickness of head is 0.188 inch.
8. SPECIAL PROVISIONS.
  - a. Transportation is limited to private carriage.
  - b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. The cargo tank must not be marked as an MC-312 on the specification plate, but should be marked on the right side near the front, in letters at least two inches high on a contrasting background "DOT-E 9956".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. July 1, 1990.

Issued at Washington, D.C.:

  
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Alan I. Roberts  
Director  
Office of Hazardous Materials  
Transportation

MAR 19 1990

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(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA